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Subject: Intra North Sea Ballast Water Contingency and Compliance Area

References:

- (a) **OSPAR 25/14/01, Annex 10**
- (b) **BWM.2/Circ.62 - Guidance on Contingency Measures under the BWM Convention**
- (c) **Resolution MEPC.387(81) - Interim Guidance on operating in challenging water quality conditions**
- (d) **Marine Notice POL-014**
- (e) **International Convention for the Control and Management of Ship's Ballast Water and Sediments, 2004 (BWM Convention), as amended**

Dear Shipowners/Operators/Inspectors/Masters:

The purpose of this Marine Advisory is to draw your attention to the **OSPAR 25/14/01, Annex 10** "Intra North Sea Ballast Water Contingency and Compliance Area in accordance with **BWM.2/Circ.62** and **MEPC.387(81)**".

Background

In June 2025, the OSPAR Commission approved an "Intra North Sea Ballast Water Contingency Area" for ships to conduct ballast water exchange and treatment. This document was referenced as "**OSPAR 25/14/01, Annex 10**", wherein the North Sea States Belgium, Denmark, Germany, Norway, the Netherlands, Sweden and the United Kingdom have decided to establish an Intra North Sea Ballast Water Contingency Area for the purpose of Ballast Water Exchange plus Treatment in accordance with **BWM.2/Circ.62** and **MEPC.387(81)**. This Contingency Area became applicable on 27 June 2025 and will expire on 26 June 2030, unless extended by the aforementioned States. The map and coordinates of the Contingency Area are subject to review on a yearly basis, as appropriate.

Scope of Application

The Intra North Sea Ballast Water Contingency Area is shown on the map in Annex 1, with coordinates listed in Annex 2, of **OSPAR 25/14/01, Annex 10** (reference a). Contingency measures are not allowed within 2 nautical miles of offshore structures such as windmills. Additional conditions are outlined in paragraph 9 of **OSPAR 25/14/01, Annex 10**.

OSPAR 25/14/01, Annex 10 applies to ships that:

- a) according to Regulation B-3 must comply with the standard according to Regulation D-2 and
- b) are on a voyage between two different North Sea ports and

- c) are facing a contingency situation according to [BWM.2/Circ.62](#) or are in challenging water quality according to [MEPC.387\(81\)](#) and
- d) have integrated the Interim Guidance [MEPC.387\(81\)](#) in their approved BWMP and implemented the procedures therein on board.

Prerequisites for the use of the Ballast Water Contingency Area in the North Sea

A ship may only use the Ballast Water Contingency Area in the North Sea for an exchange using the BWMS (Ballast Water Exchange plus Treatment) under the following conditions:

- a) Corrective action notification to the port state of the arrival port ([BWM.2/Circ.62](#), paragraph 3)
- b) Consideration of alternative discharge ([BWM.2/Circ.62](#), paragraph 3.2)
- c) Crew response to operational issues
- d) Alarm assessment
- e) Contamination minimization measures
- f) Pre-emptive bypass agreement

Appropriate entries shall be made in the BWRB in each individual case.

Please refer to [OSPAR 25/14/01, Annex 10](#) for additional details.

Bypassing the BWMS

After a bypass agreed with the port State, the ship should carry out a decontamination procedure within the coordinates of the Intra North Sea Ballast Water Contingency Area, as described in Appendix 1 of [MEPC.387\(81\)](#) within the shortest possible distance within waters under the jurisdiction of the Port State in which the BWMS was bypassed to minimize the risk of the transfer of Harmful Organisms and Pathogens.

Map of the Intra North Sea Ballast Water Contingency Area

The contingency measures described in [OSPAR 25/14/01, Annex 10](#) may be carried out in the area depicted in green in Annex 1, if the requirements of paragraphs 3 to 8 of [OSPAR 25/14/01, Annex 10](#) are fully met. Carrying out contingency measures outside of the green areas is not allowed. Within the green area, a biosafety distance of 2 nm from all offshore structures should be maintained when conducting BWE+BWT. In addition, the normal navigational practices should be followed and the regulations regarding areas otherwise restricted (military exercise areas, aquaculture areas etc.) and VTS should be observed with due diligence. Furthermore, Marine Protected Areas are also excluded, and therefore, contingency measures may not be carried out in these areas. The Guidance documents relative to these areas should be consulted before commencing these operations.

For more information on this Marine Advisory, please contact the Regulations and Standards department at regsandstandards@liscr.com.